

26STCV17060 26STCV17060

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C9%2C09%2F21%2F2026

Source SHA-256: 82526c753e0a976bc9bfb1491d3d250906c0fa128aefa807e8ba819389294fdd

Case Number: 26STCV17060 Hearing Date: September 21, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the September 21, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status

Conference. If all parties submit on the

tentative minute order prior to the commencement of the September 21, 2026 ISC,

the Court will adopt the tentative minute order, and the parties need not

appear. However, if there is any matter

that any party would like to discuss, including any proposed change to this

tentative minute order, that party should not submit on this tentative but

instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with

Department 9 court staff and wait for the case to be called unless you receive

notification that all parties have submitted on the tentative minute order.

26STCV17060

[TENTATIVE] MINUTE

ORDER

Plaintiff's

Counsel has failed to file proof of service of the operative Amended Summons

and First Amended Complaint on all named defendants. Specifically, Plaintiff's Counsel has failed

to file proof of service of the operative Amended Summons and First Amended

Complaint on STARS SANTA ANA, INC., STARS POMONA, INC., and 1465 MAIN ST., LLC

By no later than October

30, 2026, Plaintiff's Counsel must file either proof of service of the operative

Amended Summons and First Amended Complaint on STARS SANTA ANA, INC., STARS

POMONA, INC., and 1465 MAIN ST., LLC or a declaration explaining the failure to file proofs of service of the operative Amended Summons and First Amended Complaint on STARS SANTA ANA, INC., STARS POMONA, INC., and 1465 MAIN ST., LLC, setting forth any and all efforts undertaken to attempt service of the operative Amended Summons and First Amended Complaint on STARS SANTA ANA, INC., STARS POMONA, INC., and 1465 MAIN ST., LLC, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Amended Summons and First Amended Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file proof of service of the operative Amended Summons and First Amended Complaint on STARS SANTA ANA, INC., STARS POMONA, INC., and 1465 MAIN ST., LLC by October 30, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are ordered to file a timely Notice of Appearance within 30 days of service of the operative Amended Summons and First Amended Complaint on them.

If any named Defendant fails to timely respond to service of the operative Amended Summons and First Amended Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

Plaintiff has filed proof of service of the operative Amended Summons and First Amended Complaint as to certain defendants who have not timely responded to service of the operative Amended Summons and First Amended Complaint, including all ten other remaining DEFENDANTS not specifically listed above.

The time to respond for these defendants who have been served has already lapsed.

If any Defendant fails to timely respond to the service of the operative Amended Summons and First Amended Complaint by filing a Notice of Appearance, Plaintiff must pursue

that Defendant's default with diligence.

The Court reminds

the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.*

(2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). "It is

fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him." (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly,

prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the

Complaint to clearly state and give notice of the amount of damages that Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint, a request for entry of Defendant's default on the Amended Complaint may then possibly lead to a request for entry of default judgment in an amount equal to or less than that stated in the Amended Complaint. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if, after considering the above, Plaintiff voluntarily wishes to amend the operative Complaint to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than October

9, 2026, Plaintiff's Counsel must file either an amended complaint that gives notice of the dollar amount of damages that Plaintiff would seek by way of default judgment or a request for entry of all ten other remaining DEFENDANTS not specifically listed above's default or a declaration explaining the failure to seek and obtain all ten other remaining DEFENDANTS not specifically listed above's default, setting forth any and all efforts undertaken to obtain all ten other remaining DEFENDANTS not specifically listed

above's default, and explaining why sanctions (including monetary sanctions of at least \$1,000) should not be imposed for failure to timely seek all ten other remaining DEFENDANTS not specifically listed above's default, in compliance with California Rules of Court, Rule 3.720.

Failure to comply by October 9, 2026 may result in the Court setting an OSC re sanctions.

The parties are to

file a Joint Status Report by no later than October 30, 2026. The Joint Status Report re Defendants' and Cross-Defendants' Responsive Pleadings must: (1) identify the filing date of the operative Complaint and each operative Cross-Complaint, and (2) for the operative Complaint and each operative Cross-Complaint, list every Defendant named in the operative Complaint and every Cross-Defendant named in every operative Cross-Complaint. Next to each Defendant and Cross-Defendant, the Joint Status Report must identify:

(a) the date on which that Defendant/Cross-Defendant has filed a Notice of Appearance or otherwise responded to the operative Complaint/Cross-Complaint,

(b) if that Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has been entered, then the date on which that Defendant's/Cross-Defendant's default was entered, or

(c) if that Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has not been entered, then the date on which proof of service of the operative Amended Summons and First Amended Complaint/cross-complaint on that Defendant/Cross-Defendant was filed.

The previously imposed stay on the entirety of this action (including the pleadings and discovery) remains in effect.

The Initial Status

Conference is continued to November 6, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than October 30, 2026 in compliance

with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.